

Response To Comments Article

Response to Comments: Positive Airway Pressure (PAP) Devices for the Treatment of Obstructive Sleep Apnea – DL33718

A58824

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Contractor Information

Contractor Name	Contract Type	Contract Number	Jurisdiction	States
CGS Administrators, LLC	DME MAC	17013 - DME MAC	J-B	Illinois Indiana Kentucky Michigan Minnesota Ohio Wisconsin
CGS Administrators, LLC	DME MAC	18003 - DME MAC	J-C	Alabama Arkansas Colorado Florida Georgia Louisiana Mississippi New Mexico North Carolina Oklahoma Puerto Rico South Carolina Tennessee

Contractor Name	Contract Type	Contract Number	Jurisdiction	States
				Texas
				Virgin Islands
				Virginia
				West Virginia
Noridian Healthcare Solutions, LLC	DME MAC	16013 - DME MAC	J-A	Connecticut Delaware District of Columbia Maine Maryland Massachusetts New Hampshire New Jersey New York - Entire State Pennsylvania Rhode Island Vermont
Noridian Healthcare Solutions, LLC	DME MAC	19003 - DME MAC	J-D	Alaska American Samoa Arizona California - Entire State Guam Hawaii Idaho Iowa Kansas Missouri - Entire State Montana Nebraska Nevada North Dakota

Contractor Name	Contract Type	Contract Number	Jurisdiction	States
				Northern Mariana Islands Oregon South Dakota Utah Washington Wyoming

Article Information

General Information

Article ID

A58824

Article Title

Response to Comments: Positive Airway Pressure (PAP) Devices for the Treatment of Obstructive Sleep Apnea – DL33718

Article Type

Response to Comments

Original Effective Date

06/24/2021

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N/A

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Article Guidance

Article Text

During the 45-day comment period, which was open February 25, 2021 through April 10, 2021, the DME MACs received comments from 2 commenters.

NOTE: *DME MACs review all submitted comments and may choose to consolidate similar thematic comments or redact or withhold certain submissions (or portions thereof such as those containing private or proprietary information or inappropriate language or duplicate/near duplicate submissions). As a result, there may be a discrepancy between the number of comments in the article and the actual number of comments received.*

Introduction to Responses

The DME MACs appreciate the comments received from stakeholders during the open comment period on the proposed Positive Airway Pressure (PAP) Devices for the Treatment of Obstructive Sleep Apnea LCD (DL33718). We reviewed the comments in their entirety. Submitted comments that cite published, peer-reviewed literature provide suitable evidence that may inform policy, while less rigorous comments (e.g., anecdotal, unpublished information not subject to peer review) are much less influential to policy determinations.

Response To Comments

Number	Comment	Response
1	Commenters had concerns about the absence of the home sleep apnea test requirements in the	The DME MACs appreciate the advocacy of these commenters on behalf of Medicare beneficiaries. Due to the jurisdictional assignment for coverage

Number	Comment	Response
	proposed Positive Airway Pressure (PAP) Devices for the Treatment of Obstructive Sleep Apnea LCD. The commenters were concerned that removal of this information (which is not included in the National Coverage Determination 240.4.1) could negatively impact the quality of care provided to patients with obstructive sleep apnea through de-emphasizing patient education, proper training and credentialing for clinicians, and accreditation requirements.	and payment of diagnostic sleep testing to the A/B MAC contractors, the DME MACs have elected to remove sleep testing requirements from the Positive Airway Pressure (PAP) Devices for the Treatment of Obstructive Sleep Apnea LCD. The DME MACs have confirmed that all A/B MAC LCDs and/or Billing and Coding articles for polysomnography address the patient education, credentialing, and accreditation concerns expressed in the comments. Please refer to the applicable A/B MAC LCDs and Billing and Coding articles for additional details regarding coverage and payment rules for sleep tests. In addition, at least one sleep lab accreditation entity includes a patient education standard as part of their accreditation process required by the A/B MAC LCDs.

Associated Documents

Related Local Coverage Documents

LCDs

[L33718 - Positive Airway Pressure \(PAP\) Devices for the Treatment of Obstructive Sleep Apnea](#) 

Related National Coverage Documents

NCDs

[280.1 - Durable Medical Equipment Reference List](#) 

[240.1 - Lung Volume Reduction Surgery \(Reduction Pneumoplasty\)](#) 

[240.4.1 - Sleep Testing for Obstructive Sleep Apnea \(OSA\)](#) 

Public Versions

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Keywords

N/A